

COMMITTEE ON NATURAL RESOURCES
SENATE AMENDMENTS TO S.B. 1279
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 45-117, Arizona Revised Statutes, is amended to
3 read:

4 45-117. Water resources fund; purpose; monies held in trust

5 A. The water resources fund is established to be maintained in
6 perpetuity consisting of:

7 1. Except as provided in section 45-113, subsection F, monies
8 received pursuant to sections 45-113, 45-115, 45-116, 45-183, 45-273,
9 45-292, 45-411.01, 45-467, 45-476.01, 45-595, 45-612, 45-703, 45-871.01,
10 45-874.01, 45-1021, 45-1041, 45-1205, ~~AND~~ 45-1603 ~~and 45-1605~~.

11 2. Monies appropriated by the legislature to the water resources
12 fund.

13 3. Gifts, grants and donations to the fund from any public or
14 private source.

15 4. Interest and other income received from investing monies in the
16 fund.

17 B. Monies in the fund are subject to legislative appropriation.
18 Monies remaining in the fund at the end of the fiscal year remain in the
19 fund and are exempt from the provisions of section 35-190 relating to
20 lapsing of appropriations.

21 C. EXCEPT FOR MONIES COLLECTED PURSUANT TO SECTION 45-1603, monies
22 in the fund shall be used exclusively by the department of water resources
23 to carry out the purposes of this title and shall not be appropriated for
24 any other purpose. MONIES COLLECTED PURSUANT TO SECTION 45-1603 SHALL BE
25 DISTRIBUTED TO THE DEPARTMENT OF WATER RESOURCES AND THE DEPARTMENT OF
26 ENVIRONMENTAL QUALITY IN PROPORTION TO EACH DEPARTMENT'S COST OF REVIEWING
27 A WEATHER MODIFICATION LICENSE APPLICATION.

28 D. The director shall administer the fund. On notice from the
29 director, the state treasurer shall invest and divest the monies in the

1 fund as provided by section 35-313 and monies earned from investment shall
2 be credited to the fund.

3 E. Any fee, assessment or other levy that is authorized by law or
4 administrative rule and that is collected and deposited in the water
5 resources fund shall be held in trust. The monies in the fund may be used
6 only for the purposes prescribed by statute and shall not be appropriated
7 or transferred by the legislature to fund the general operations of this
8 state or to otherwise meet the obligations of the general fund of this
9 state. This subsection does not apply to any taxes or other levies that
10 are imposed pursuant to title 42 or 43.

11 Sec. 2. Heading change

12 The chapter heading of title 45, chapter 9, Arizona Revised
13 Statutes, is changed from "WEATHER CONTROL AND CLOUD MODIFICATION" to
14 "WEATHER MODIFICATION".

15 Sec. 3. Section 45-1601, Arizona Revised Statutes, is amended to
16 read:

17 45-1601. License required

18 ~~No A person, or A corporation, other than the United States and its~~
19 ~~administrative agencies or the A POLITICAL SUBDIVISION OR AGENCY OF THIS~~
20 state ~~shall~~, without having first received a license from the director of
21 water resources, SHALL NOT conduct any weather ~~control or cloud~~
22 modification operations or attempt artificially to ~~produce rainfall~~
23 AUGMENT PRECIPITATION, PERFORM HAIL SUPPRESSION OR DISPERSE FOG IN THIS
24 STATE.

25 Sec. 4. Section 45-1602, Arizona Revised Statutes, is amended to
26 read:

27 45-1602. Application for weather modification license;
28 conditions; rules

29 ~~A. Any individual or corporation who~~ A PERSON OR A POLITICAL
30 SUBDIVISION OR AGENCY OF THIS STATE THAT proposes to operate weather
31 ~~control or cloud~~ modification projects or THAT attempts to artificially
32 ~~induce rainfall shall~~, AUGMENT PRECIPITATION, PERFORM HAIL SUPPRESSION OR
33 DISPERSE FOG, before engaging in any such operation, ~~make application~~
34 SHALL APPLY to the director for a license to engage in the particular
35 weather ~~control or cloud~~ modification operation contemplated.

36 B. ON RECEIPT OF ANY ADMINISTRATIVELY COMPLETE APPLICATION, THE
37 DIRECTOR SHALL TRANSMIT A COPY OF THE APPLICATION TO THE DEPARTMENT OF
38 ENVIRONMENTAL QUALITY.

39 C. THE DIRECTOR SHALL ISSUE A WEATHER MODIFICATION LICENSE WITHIN
40 ONE HUNDRED TWENTY DAYS IF THE DIRECTOR DETERMINES THAT BOTH OF THE
41 FOLLOWING APPLY:

42 1. THE PROPOSED OPERATION WILL NOT CAUSE FLOODING, DAMAGE PROPERTY
43 OR HARM WILDLIFE.

1 2. THE PROPOSED OPERATION WILL USE CHEMICALS, COMPOUNDS OR
2 SUBSTANCES THAT HAVE BEEN REVIEWED AND APPROVED BY THE DEPARTMENT OF
3 ENVIRONMENTAL QUALITY PURSUANT TO SECTION 49-119 AND THE DIRECTOR OF THE
4 DEPARTMENT OF ENVIRONMENTAL QUALITY HAS ISSUED A STATEMENT THAT AFFIRMS
5 ITS REVIEW OF THE APPLICATION AND THE PROPOSED USE AND QUANTITY OF THE
6 CHEMICALS, COMPOUNDS OR SUBSTANCES.

7 D. ON RECEIPT OF THE NOTICE FROM THE DEPARTMENT OF ENVIRONMENTAL
8 QUALITY PURSUANT TO SECTION 49-119, THE ~~[DEPARTMENT]~~ ~~[DIRECTOR]~~ OF THE
9 DEPARTMENT OF WATER RESOURCES SHALL PROVIDE WRITTEN NOTICE OF THE PROPOSED
10 OPERATION TO THE GENERAL PUBLIC THAT RESIDES OR OWNS PROPERTY IN THE
11 PROPOSED OPERATION AREA AND ACCEPT PUBLIC COMMENT ON THE PROPOSED
12 OPERATION.

13 E. WITHIN THIRTY DAYS AFTER PROVIDING NOTICE AND THE OPENING OF
14 PUBLIC COMMENT, THE DIRECTOR SHALL HOLD AT LEAST ONE PUBLIC MEETING IN THE
15 LIKELY AFFECTED AREA.

16 F. THE DIRECTOR MAY CONDITION A WEATHER MODIFICATION LICENSE ON THE
17 APPLICANT AGREEING IN WRITING TO MODIFY THE WEATHER MODIFICATION OPERATION
18 CONSISTENT WITH THE REQUIREMENTS OF THE DEPARTMENT OF ENVIRONMENTAL
19 QUALITY.

20 G. THE DIRECTOR SHALL CONDITION A WEATHER MODIFICATION LICENSE ON
21 THE APPLICANT AGREEING IN WRITING TO BE RESPONSIBLE FOR ACTIVELY
22 MONITORING THE WEATHER CONDITIONS AND PATTERN BEFORE THE OPERATION BEGINS
23 AND MAINTAINING FAMILIARITY WITH THE LICENSE SUSPENSION CRITERIA ADOPTED
24 PURSUANT TO SECTION 45-1603.02.

25 H. ALL LICENSEES SHALL MAINTAIN INSURANCE OR EVIDENCE OF FINANCIAL
26 SURETY FOR THE DURATION OF ANY WEATHER MODIFICATION OPERATION. THE
27 EVIDENCE OF FINANCIAL SURETY MAY BE SATISFIED BY A CONTRACTOR INDEMNIFYING
28 THE LICENSEE. THE DIRECTOR SHALL ADOPT RULES TO ESTABLISH A FORMULA FOR
29 THE NECESSARY INSURANCE OR FINANCIAL SURETY THAT IS NEEDED TO PROTECT THE
30 PUBLIC AND COVER ANY POTENTIAL LOSSES FROM WEATHER MODIFICATION
31 OPERATIONS.

32 Sec. 5. Section 45-1603, Arizona Revised Statutes, is amended to
33 read:

34 45-1603. Application fee; statement accompanying application

35 A. At the time of applying for the license, the applicant shall pay
36 to the director a fee of ~~one hundred dollars,~~ \$100 and shall file an
37 application in the form prescribed by the director and furnish a statement
38 showing:

39 1. The name, CONTACT INFORMATION and address of the applicant AND
40 THE CONTRACTOR THAT THE APPLICANT MAY USE FOR THE OPERATION.

41 ~~2. The names of the operating personnel, and if unincorporated all~~
42 ~~individuals connected with the organization, or if a corporation the names~~
43 ~~of each of the officers and directors thereof, together with the address~~
44 ~~of each.~~

45 ~~3. The scientific qualifications of all operating or supervising~~
46 ~~personnel.~~

1 ~~4. A statement of all other contracts completed or in process of~~
2 ~~completion at the time the application is made, giving the names and~~
3 ~~addresses of the persons to whom the services were furnished and the areas~~
4 ~~in which such operations have been or are being conducted.~~
5 2. THE POSITION JOB TITLES AND JOB DESCRIPTIONS OF THE KEY PERSONS
6 WHO ARE RESPONSIBLE FOR THE WEATHER MODIFICATION OPERATION.
7 ~~5-~~ 3. THE methods of operation the licensee will use and the
8 description of the aircraft, EQUIPMENT, ground and meteorological services
9 to be ~~utilized~~ USED AND THE OPERATING TECHNIQUE.
10 ~~6-~~ 4. ~~Names of the contracting parties within the state~~ DETAILS OF
11 THE OPERATION, including:
12 (a) The area to be served.
13 (b) The months AND ESTIMATED HOURS in which operations will be
14 conducted.
15 (c) The dates when evaluations will be submitted.
16 (d) THE TYPE OF WEATHER MODIFICATION PROPOSED, INCLUDING WHETHER
17 THE OPERATION WILL AUGMENT PRECIPITATION, PERFORM HAIL SUPPRESSION OR
18 DISPERSE FOG.
19 (e) THE ESTIMATED VOLUME OF WATER IN ACRE-FEET THAT THE LICENSEE
20 EXPECTS TO CREATE OR INDUCE AND THE ESTIMATION METHODOLOGY.
21 (f) THE NAMES AND QUANTITY OF EACH CHEMICAL, COMPOUND AND SUBSTANCE
22 THAT THE LICENSEE WILL RELEASE AND THAT THE DEPARTMENT OF ENVIRONMENTAL
23 QUALITY HAS APPROVED [, OR IS IN THE PROCESS OF APPROVING.] THE QUANTITY
24 AND CHEMICAL, COMPOUND OR SUBSTANCE FOR THE PROPOSED USE PURSUANT TO
25 SECTION 49-119.
26 5. THE POTENTIAL WATERSHEDS, RIVERS, STREAMS AND FLOODPLAINS THAT
27 MAY BE AFFECTED BY THE OPERATION.
28 6. THE PROJECTED WEATHER FORECAST OR WEATHER PATTERN FOR THE
29 OPERATION PERIOD AND THE [INFORMATION] SOURCE OF THE PROJECTED FORECAST OR
30 PATTERN.
31 7. EVIDENCE OF FINANCIAL SURETY OR INSURANCE FOR THE DURATION OF
32 THE LICENSE TIME FRAME.
33 B. The director shall deposit, pursuant to sections 35-146 and
34 35-147, all fees received under this section in the water resources fund
35 established by section 45-117.
36 Sec. 6. Title 45, chapter 9, article 1, Arizona Revised Statutes,
37 is amended by adding sections 45-1603.01, 45-1603.02 and 45-1603.03, to
38 read:
39 45-1603.01. Weather modification license; duration; renewal;
40 effective date of license; definition
41 A. A LICENSE ISSUED PURSUANT TO THIS ARTICLE SHALL REMAIN VALID FOR
42 ONE YEAR FROM THE DATE OF ISSUANCE.
43 B. BEFORE EXPIRATION OF THE LICENSE, A LICENSEE MAY SUBMIT A
44 RENEWAL APPLICATION ON A FORM PRESCRIBED BY THE DIRECTOR. THE DIRECTOR
45 SHALL TAKE ACTION ON ANY ADMINISTRATIVELY COMPLETE RENEWAL APPLICATION
46 WITHIN THIRTY DAYS AFTER RECEIPT. ANY LICENSE RENEWAL THAT IS APPROVED
47 BEFORE THE EXPIRATION DATE OF THE ORIGINAL LICENSE OR A RENEWED LICENSE

1 REMAINS IN EFFECT FROM THE ORIGINAL DATE OF ISSUANCE TO THE END OF THE
2 RENEWAL PERIOD.

3 C. THE DIRECTOR SHALL APPROVE A RENEWAL APPLICATION IF ALL OF THE
4 FOLLOWING CONDITIONS ARE MET:

5 1. THERE IS NO MATERIAL CHANGE IN THE LICENSEE'S OPERATION.

6 2. THE LICENSEE HAS COMPLIED WITH ALL REPORTING AND NOTICE
7 REQUIREMENTS PRESCRIBED IN SECTION 45-1604.

8 3. THE LICENSEE HAS NOT BEEN CONVICTED OF A VIOLATION OF THIS
9 ARTICLE PURSUANT TO SECTION 45-1607.

10 4. THE LICENSEE HAS AND MAINTAINS SUFFICIENT FINANCIAL SURETY OR
11 INSURANCE PURSUANT TO SECTION 45-1602.

12 D. IF THERE IS A MATERIAL CHANGE IN THE LICENSEE'S OPERATION, THE
13 LICENSEE SHALL SUBMIT A NEW APPLICATION AS PRESCRIBED IN SECTION 45-1602.

14 E. FOR THE PURPOSES OF THIS SECTION, "MATERIAL CHANGE":

15 1. INCLUDES A CHANGE IN THE PROPOSED CHEMICAL COMPOUNDS OR
16 SUBSTANCES THAT WILL BE USED IN THE PLANNED OPERATION OR A SUBSTANTIAL
17 INCREASE IN THE PER EVENT AMOUNT OF CHEMICALS, COMPOUNDS OR SUBSTANCES
18 THAT WILL BE USED IN THE PLANNED OPERATION.

19 2. DOES NOT INCLUDE A CHANGE IN THE MONTHS, NUMBER OF MONTHS OR
20 ESTIMATED HOURS OF OPERATION IF THE CHANGES OCCUR WITHIN THE SAME
21 OPERATION SEASON AS THE ORIGINAL LICENSE.

22 45-1603.02. Rules; license; suspension; criteria

23 A. TO PROTECT THE PUBLIC HEALTH AND SAFETY AND TO MITIGATE ANY
24 POTENTIAL IMPACTS TO AFFECTED FLOODPLAINS, WATERSHEDS AND PROPERTY OWNERS,
25 THE DIRECTOR SHALL ADOPT RULES THAT ESTABLISH CRITERIA FOR SUSPENDING
26 WEATHER MODIFICATION OPERATIONS. THE DIRECTOR SHALL BASE THE CRITERIA ON
27 INDUSTRY GUIDELINES, SUSPENSION CRITERIA IN OTHER WESTERN STATES AND
28 FEEDBACK FROM STAKEHOLDERS THAT IS COLLECTED DURING THE RULEMAKING
29 PROCESS.

30 B. A PERSON MAY NOT CONDUCT OR ATTEMPT WEATHER MODIFICATION WHEN
31 SUSPENSION CRITERIA ARE IN EFFECT.

32 C. BEFORE THE DIRECTOR PREPARES OR SUBMITS ANY NOTICE TO ADOPT OR
33 AMEND ANY RULES ADOPTED PURSUANT TO THIS SECTION, THE DIRECTOR SHALL ISSUE
34 A PUBLIC NOTICE AND HOLD AT LEAST ONE PUBLIC MEETING TO SEEK FEEDBACK FROM
35 MEMBERS OF THE PUBLIC AND INTERESTED STAKEHOLDERS.

36 45-1603.03. Online license database

37 A. THE DIRECTOR SHALL MAINTAIN A SEARCHABLE DATABASE OF ALL
38 LICENSES AND LICENSE APPLICATIONS ON THE DEPARTMENT'S WEBSITE. THE
39 DATABASE SHALL INCLUDE THE FOLLOWING:

40 1. THE NAME OF THE OPERATION, APPLICANT OR LICENSEE.

41 2. THE APPLICATION OR LICENSE NUMBER.

42 3. THE OPERATION DATE RANGE.

43 4. THE LOCATION AND THE LIKELY AFFECTED AREA OF THE PROJECT.

44 5. THE PURPOSE OF THE OPERATION, INCLUDING WHETHER THE PURPOSE IS
45 TO AUGMENT PRECIPITATION, PERFORM HAIL SUPPRESSION OR DISPERSE FOG.

46 6. THE ANTICIPATED VOLUME OF WATER IN ACRE-FEET THAT THE OPERATION
47 WILL PRODUCE.

1 7. A DOWNLOADABLE LINK OF THE APPLICATION OR LICENSE AND ALL
2 ACCOMPANYING DOCUMENTATION, INCLUDING ALL DOCUMENTS AND APPROVALS THAT ARE
3 SUBMITTED OR RECEIVED FROM THE DEPARTMENT OF ENVIRONMENTAL QUALITY
4 PURSUANT TO SECTION 49-119.

5 B. THE DIRECTOR SHALL UPDATE THE DATABASE EACH TIME THE DIRECTOR
6 RECEIVES OR TAKES ANY ACTION ON AN APPLICATION OR LICENSE THAT IS
7 SUBMITTED OR ISSUED PURSUANT TO THIS ARTICLE.

8 Sec. 7. Section 45-1604, Arizona Revised Statutes, is amended to
9 read:

10 45-1604. Notice of planned operation; reports required from
11 licensees; failure to file; revocation of license

12 A. [EXCEPT FOR THE INITIAL APPLICATION YEAR IN WHICH THE DIRECTOR
13 ISSUES A NOTICE TO THE PUBLIC,] BEFORE THE START OF EACH ANNUAL SEASON
14 THAT A LICENSEE PLANS TO CONDUCT A WEATHER MODIFICATION OPERATION, EACH
15 LICENSEE SHALL ISSUE A NOTICE IN A NEWSPAPER OF GENERAL CIRCULATION IN THE
16 AFFECTED AREA THAT CONTAINS ALL OF THE FOLLOWING:

17 1. A BRIEF DESCRIPTION OF THE PLANNED OPERATION AREA AND THE LIKELY
18 AFFECTED AREA.

19 2. A BRIEF DESCRIPTION OF THE POTENTIAL MONTHS AND ESTIMATED HOURS
20 OF OPERATION.

21 3. A BRIEF STATEMENT INDICATING THAT THE DEPARTMENT OF WATER
22 RESOURCES AND THE DEPARTMENT OF ENVIRONMENTAL QUALITY HAVE APPROVED THE
23 OPERATION.

24 4. THE NAME AND CONTACT INFORMATION OF THE LICENSEE'S PRIMARY POINT
25 OF CONTACT.

26 5. THE CONTACT INFORMATION OF THE DEPARTMENT OF WATER RESOURCES.

27 6. THE NAME AND CONTACT INFORMATION OF THE DEPARTMENT OF
28 ENVIRONMENTAL QUALITY.

29 B. ~~Each licensee shall,~~ Within ninety days after conclusion of any
30 weather ~~control or cloud~~ modification project, EACH LICENSEE SHALL file
31 with the director a final evaluation of the project. Each six months
32 during the operation of any project ~~which~~ THAT has not been completed each
33 licensee shall file a report evaluating the operations for the preceding
34 six months in the project.

35 C. ALL REPORTS SHALL INCLUDE THE FOLLOWING:

36 1. THE TOTAL NUMBER OF CLOUD SEEDING HOURS.

37 2. THE TOTAL ESTIMATED VOLUME IN ACRE-FEET OF WATER PRODUCED.

38 3. THE NAME AND VOLUME OF ALL CHEMICALS, COMPOUNDS AND SUBSTANCES
39 THE LICENSEE USED.

40 D. THE DIRECTOR OF THE DEPARTMENT OF WATER RESOURCES SHALL FORWARD
41 ALL REPORTS TO THE DIRECTOR OF THE DEPARTMENT OF ENVIRONMENTAL QUALITY.

42 E. THE failure to file ~~such reports~~ ANY REPORT OR TO PROVIDE THE
43 NOTICE PRESCRIBED IN THIS SECTION constitutes grounds for immediate
44 revocation of the license.

45 Sec. 8. Repeal

46 Section 45-1605, Arizona Revised Statutes, is repealed.

1 Sec. 9. Section 45-1606, Arizona Revised Statutes, is amended to
2 read:

3 45-1606. Exception

4 ~~Nothing in~~ This article ~~shall be construed to~~ DOES NOT prohibit the
5 use and operation of equipment and supplies designed for the purpose of
6 weather ~~control or cloud~~ modification THAT ARE owned by the owner, lessee
7 or licensee of real property AND THAT ARE used for agricultural purposes
8 on the property for his exclusive benefit.

9 Sec. 10. Section 45-1607, Arizona Revised Statutes, is amended to
10 read:

11 45-1607. Violations; classification; enforcement

12 A. ~~Any~~ A person ~~conducting~~ THAT CONDUCTS weather ~~control or cloud~~
13 modification operations without first having procured a license as
14 provided by this article, ~~or~~ who knowingly makes a false statement in the
15 application for license, ~~or who knowingly fails to file any report or~~
16 ~~evaluation required by this article, or~~ who KNOWINGLY conducts any weather
17 control ~~or cloud~~ modification operation WHEN SUSPENSION CRITERIA ARE IN
18 EFFECT, WHEN THE PERSON SHOULD HAVE KNOWN SUSPENSION CRITERIA ARE IN
19 EFFECT, OR after revocation of ~~his or its~~ THE PERSON'S license, or who
20 violates any other provision of this article, INCLUDING THE USE OF ANY
21 CHEMICAL, COMPOUND OR SUBSTANCE IN AN AMOUNT GREATER THAN AUTHORIZED BY
22 THE PERSON'S LICENSE, is guilty of a class 3 misdemeanor.

23 B. ANY RESIDENT OF THIS STATE MAY SUBMIT A PETITION TO THE
24 ~~[ATTORNEY GENERAL]~~ [DIRECTOR] ALLEGING A VIOLATION ~~[OF]~~ [PURSUANT TO] THIS
25 SECTION. THE ~~[ATTORNEY GENERAL]~~ [DIRECTOR] SHALL ~~[INVESTIGATE]~~ [REVIEW]
26 ALL PETITIONS~~[-]~~ [AND MAY INVESTIGATE ANY PETITION THAT THE DIRECTOR
27 REASONABLY BELIEVES MAY VIOLATE THIS ARTICLE. IF THE DIRECTOR DETERMINES
28 THAT A PERSON HAS VIOLATED THIS ARTICLE, THE DIRECTOR MAY DO ANY
29 COMBINATION OF THE FOLLOWING:

- 30 1. ISSUE A CEASE-AND-DESIST ORDER.
31 2. ASSES A CIVIL PENALTY OF NOT MORE THAN \$1,000 FOR EACH VIOLATION
32 BUT NOT TO EXCEED \$10,000 IN THE AGGREGATE.
33 3. REFER THE MATTER TO THE ATTORNEY GENERAL FOR ENFORCEMENT.

34 C.] THE ATTORNEY GENERAL SHALL FILE ANY COMPLAINTS PURSUANT TO THIS
35 SECTION IN THE SUPERIOR COURT.

36 [C.] IN ADDITION TO ANY OTHER APPLICABLE PENALTIES, THE COURT SHALL
37 AWARD THE PREVAILING PARTY INJUNCTIVE RELIEF, REASONABLE ATTORNEY FEES AND
38 ANY OTHER RELIEF THE COURT FINDS NECESSARY.

39 Sec. 11. Title 45, chapter 9, article 1, Arizona Revised Statutes,
40 is amended by adding section 45-1608, to read:

41 45-1608. Immunity from liability

42 THE DEPARTMENT, THE DIRECTOR AND THIS STATE, INCLUDING THE
43 DEPARTMENT OF ENVIRONMENTAL QUALITY, ARE NOT LIABLE FOR ANY DAMAGES,
44 CLAIMS OR CAUSES OF ACTION THAT RESULT FROM A LICENSE ISSUED PURSUANT TO
45 THIS ARTICLE OR SECTION 49-119.

1 Sec. 12. Title 49, chapter 1, article 1, Arizona Revised Statutes,
2 is amended by adding section 49-119, to read:

3 49-119. Weather modification; rules; application review

4 A. THE DIRECTOR SHALL ADOPT RULES TO CREATE A LIST OF APPROVED
5 CHEMICALS, COMPOUNDS AND SUBSTANCES AND THE MAXIMUM QUANTITY OF EACH
6 CHEMICAL, COMPOUND AND SUBSTANCE THAT A PERSON MAY USE TO CONDUCT WEATHER
7 MODIFICATION OPERATIONS OR TO ATTEMPT ARTIFICIALLY TO AUGMENT
8 PRECIPITATION, PERFORM HAIL SUPPRESSION OR DISPERSE FOG. THE DIRECTOR
9 SHALL BASE THE LIST ON INDUSTRY GUIDELINES, THE MAXIMUM QUANTITY OF EACH
10 CHEMICAL, COMPOUND AND SUBSTANCE THAT ARE AUTHORIZED IN OTHER WESTERN
11 STATES AND THE POTENTIAL EFFECTS OF THE CHEMICALS, COMPOUNDS AND
12 SUBSTANCES ON PERSONS, WILDLIFE AND THE ENVIRONMENT.

13 B. WITHIN THIRTY DAYS AFTER RECEIVING A WEATHER MODIFICATION
14 LICENSE APPLICATION PURSUANT TO TITLE 45, CHAPTER 9, THE DIRECTOR SHALL:

15 1. REVIEW THE APPLICATION AND DETERMINE WHETHER THE PROPOSED
16 CHEMICALS, COMPOUNDS AND SUBSTANCES AND THE PROPOSED QUANTITY OF EACH
17 COMPLY WITH RULES ADOPTED PURSUANT TO THIS SECTION.

18 2. TRANSMIT TO THE DIRECTOR OF THE DEPARTMENT OF WATER RESOURCES A
19 WRITTEN NOTICE THAT THE DEPARTMENT OF ENVIRONMENT QUALITY HAS REVIEWED THE
20 APPLICATION AND THAT THE PROPOSED CHEMICALS, COMPOUNDS AND SUBSTANCES AND
21 THE PROPOSED QUANTITY OF EACH COMPLIES OR FAILS TO COMPLY WITH THE RULES
22 ADOPTED PURSUANT TO THIS SECTION. THE DIRECTOR OF THE DEPARTMENT OF
23 ENVIRONMENTAL QUALITY SHALL INDIVIDUALLY NOTE COMPLIANCE FOR EACH PROPOSED
24 CHEMICAL, COMPOUND AND SUBSTANCE AND EACH QUANTITY.

25 C. THE DIRECTOR MAY CONDITION THE DETERMINATION MADE PURSUANT TO
26 SUBSECTION B, PARAGRAPH 2 OF THIS SECTION ON THE APPLICANT AGREEING TO
27 MODIFY THE PROPOSED CHEMICAL, COMPOUND OR SUBSTANCE OR THE QUANTITY
28 CONSISTENT WITH THE GUIDELINES OF THE DEPARTMENT.

29 D. THE DIRECTOR SHALL PROVIDE A REPRESENTATIVE TO BE PRESENT AT ANY
30 PUBLIC MEETING HELD PURSUANT TO SECTION 45-1603.02.

31 E. BEFORE THE DIRECTOR FILES A NOTICE WITH THE SECRETARY OF STATE
32 TO ADOPT RULES OR MODIFY RULES PURSUANT TO THIS SECTION, THE DIRECTOR
33 SHALL ISSUE A PUBLIC NOTICE, HOLD A PUBLIC MEETING AND SEEK FEEDBACK FROM
34 THE PUBLIC AND INTERESTED STAKEHOLDERS.

35 Sec. 13. Rulemaking

36 [A.] Within sixty days after the effective date of this act, the
37 department of water resources and the department of environmental quality
38 shall ~~[adopt rules]~~ [initiate rulemaking] to implement this act.

39 [B. Within six months after the effective date of this act, the
40 department of environmental quality and the department of water resources
41 shall adopt rules to implement this act.]

42 Sec. 14. Legislative intent

43 It is the intent of the legislature that the online license database
44 the department of water resources maintains pursuant to section
45 45-1603.03, Arizona Revised Statutes, as added by this act, be similar to
46 the national oceanic and atmospheric administration weather modification
47 database.

1 Sec. 15. Applicability

2 This act applies from and after the effective date of updated rules
3 that are adopted by the department of environmental quality and the
4 department of water resources pursuant to this act.

5 Enroll and engross to conform

6 Amend title to conform

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